

25NNCV04051 25NNCV04051

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-07-31
Source URL:
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Case Number: 25NNCV04051 Hearing Date: July 31, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

GILBERT
MACABEO,

Plaintiff(s),

vs.

ROBERT
LAI,

Defendant(s).

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CASE NO.: 25NNCV04051

ORDER

RE: APPLICATION

FOR DEFAULT JUDGMENT

Dept.

3

8:30

a.m.

July 31,

2026

)

Plaintiff Gilbert Macabeo ("Plaintiff")

requests an attorney fee award of \$7,800 based on his counsel's hourly rate of \$750 and 10.4 hours of work. This amount exceeds the schedule set forth in Local Rule 3.214 and Plaintiff's counsel's declaration does not explain why the Court should deviate from the schedule. Plaintiff's counsel also does not explain why his hourly rate of \$750 is reasonable other than to say it is reasonable "given [his] experience, years of practice, and the prevailing market rates for attorneys handling civil litigation and landlord-tenant habitability matters in Los Angeles County." (Sudano Decl., ¶ 10.) Counsel does not state how many years of practice he has, nor does he describe his experience or provide evidence of the prevailing market rates for attorneys

handling similar matters.

Accordingly, the hearing is CONTINUED

to _____ at 8:30 a.m. in Department 3 of Alhambra Courthouse. Plaintiff is ordered to substantiate his request for \$7,800 in fees or submit a revised proposed judgment requesting fees in accordance with Local Rule 3.214. Any revised or supplemental papers must be filed no later than 5 court days before the hearing.

Dated

this 31st

day of July 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.